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CASE #	CASE NAME	HEARING NAME
CVPS2406846	SCHERMAN VS HYATT CORPORATION	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF SOPHIA SCHERMAN BY HYATT CORPORATION, INDIAN WELLS RESORTS & VILLAS

Tentative Ruling: Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c)). A defendant moving for summary judgment bears the initial burden of proving that there is no merit to a cause of action by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (CCP § 437c(p)(2); *Cucuzza v. City of Santa Clara* (2002) 104 Cal.App.4th 1031, 1037). Once the defendant has made such a showing, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849). The opposing party may not rely upon the allegations or denials in its pleadings, but must “set forth the specific facts showing that a triable issue of material fact exists.” (CCP § 437c(p)(2)). Claims and theories not supported by admissible evidence do not raise triable issues of fact. (*Rochlis v. Walt Disney Co.* (1993) 19 Cal.App.4th 201, 219, *disapproved on another ground in Turner v. Anheuser–Busch, Inc.* (1994) 7 Cal.4th 1238). Although summary judgment is no longer considered a “disfavored” procedure, the moving party’s evidence must be strictly construed, while the opposing party’s evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838).

The moving facts:

Plaintiff allegedly slipped or tripped and fell on stairs on November 27, 2022 at approximately 10:15 p.m. in a room (Room 4227) within the Hyatt Regency Indian Wells Resort & Spa, located at 44600 Indian Wells Lane, Indian Wells, California 92210 (the "Premises"). (Defendants' Separate Statement of Undisputed Material Facts ["UMF"] No. 1). Plaintiff had never stayed at the Premises prior to November 27, 2022. (UMF, No. 2). Plaintiff used her key card to enter the room and recalled that the lights were off. (UMF, No. 3). Plaintiff made no attempt to look for a light switch to turn on before she entered the room, and believed that the room was light enough for her to walk through. (UMF, No. 4). When Plaintiff entered the room on November 27, 2022, she was carrying a suitcase which weighed approximately 50 pounds and a shoulder handbag. (UMF, No. 5). Plaintiff fell forward down the stairs in her room. (UMF, No. 6). Prior to Plaintiff's fall incident on November 27, 2022, no one had reported any injuries in Room 4227 at the Premises. (UMF, No. 7). Only one (1) incident was reported to Defendants regarding a guest tripping or falling in any room other than Room 4227, at the Premises within the past 10 years, [which] occurred on November 22, 2021, where a guest reported he woke up in the middle of the night, failed to turn on the light, and tripped on a stair or stairs in the darkened room. No lawsuit was ever filed regarding that incident. (UMF, No. 8).

The Premises was built in 1986, which is the same year the stairs in each of the rooms therein were built. (UMF, No. 9). Hyatt Corporation sold the Premises on April 1, 2022 to Trinity Acquisitions LLC and, thus, as of November 27, 2022, Hyatt Corporation was not the owner of the Premises; rather, as of that date, Hyatt Corporation was the management company under contract with Trinity Acquisitions LLC, the owner of the Premises, to operate the same, and Hyatt Corporation was doing business at Hyatt Regency Indian Wells Resort & Spa. (UMF, No. 10). The guest rooms and the stairs therein at the Premises, which were built in 1986, could not have been designed or constructed without the approval of city and county officials in Indian Wells, California and Riverside County, California. (UMF, No. 11). The hotel rooms at the Premises undergo renovations, including re-carpeting, approximately every 10 years, and the most recent renovation occurred in 2023. (UMF, No. 12). Prior Plaintiff's fall incident on November 27, 2022, no one had reported any injuries in Room 4227, and Defendants never had any notice of an allegedly dangerous condition in Room 4227 at the Premises, prior to Plaintiff's fall incident on November 27, 2022; therefore, Defendants had no opportunity or duty to correct a dangerous condition that did not exist. (UMF, No. 13). Defendants did not hire any employee with respect to the work on the construction of Room 4227, or the stairs located therein, who was not competent to perform said work, or who otherwise exposed others to a risk of harm. (UMF, No. 14).

Plaintiff failed to turn on the light switch when she entered Room 4227 at the Premises prior to her fall on November 27, 2022. (UMF, No. 17). Plaintiff took photos of the stairs in the room where she allegedly fell in Room 4227 at the Premises on November 27, 2022; said photos are the only evidence Plaintiff has which she believes "shows or tends to show that the carpet upon which [she] allege[s] to have fallen constituted a dangerous condition." (UMF, No. 19).

Elements Of Causes Of Action Alleged:

"The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1159.) To establish negligence, the plaintiff must prove the following: 1) a legal duty to use due care, 2) a breach of that duty, and 3) the breach as the proximate or legal cause of the resulting injury. (See *Federico v. Superior Court* (1997) 59 Cal.App.4th 1207, 1211; *Jackson v. Ryder Truck Rental* (1993) 16 Cal.App.4th 1830, 1837; *Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998; *Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917-918. See *Mark K. v. Roman Catholic Archbishop of Los Angeles* (1998) 67 Cal.App.4th 603, 612.) "The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence." (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) "It is well established in California that although a store owner is not an insurer of the safety of its patrons, the owner does owe them a duty to exercise reasonable care in keeping the premises reasonably safe." (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205, citing *Girvetz v. Boys' Market, Inc.* (1949) 91 Cal.App.2d 827, 829.)

Duty/Breach of Duty:

Here, the undisputed material facts show that Defendants did not breach any duties to Plaintiff with respect to the condition of the stairs in Room 4227 of the Premises. Plaintiff allegedly slipped or tripped and fell forward down the stairs on November 27, 2022 at approximately 10:15 p.m. in a room (Room 4227) within the Hyatt Regency Indian Wells Resort & Spa, located at 44600 Indian Wells Lane, Indian Wells, California 92210 (the "Premises"). (UMF, Nos. 1, 6). Prior to Plaintiff's fall incident on November 27, 2022, no one had reported any injuries in Room 4227 at the Premises. (UMF, No. 7). Only one (1) incident was reported to Defendants regarding a guest tripping or falling in any room that had the same stair design as did Room 4227 at the Premises within the past 10 years. That incident occurred on November 22, 2021, where a guest reported he woke up in the middle of the night, failed to turn on the light, and tripped on a stair or stairs in the darkened room. No lawsuit was ever filed regarding that incident. (UMF, No. 8).

The guest rooms and the stairs therein at the Premises, which were built in 1986, could not have been designed or constructed without the approval of city and county officials in Indian Wells, California and Riverside County, California. (UMF, No. 11). Prior [to] Plaintiff's fall incident on November 27, 2022, no one had reported any injuries in Room 4227, and Defendants never had any notice of an allegedly dangerous condition in Room 4227 at the Premises, prior to Plaintiff's fall incident on November 27, 2022; therefore, Defendants had no opportunity or duty to correct a dangerous condition that did not exist. (UMF, No. 13).

Plaintiff has no evidence that Defendants had any actual knowledge or notice of a dangerous condition in the area where she fell in Room 4227 at the Premises, prior to November 27, 2022. (UMF, No. 15). Plaintiff has no evidence that Defendants had an opportunity to correct any dangerous condition that purportedly caused Plaintiff to fall in Room 4227 at the Premises, prior to November 27, 2022, and that Defendants allegedly failed to correct said condition. (UMF, No. 16). Plaintiff has no evidence that Defendants had any notice of any prior guests falling on the carpet steps in its hotel rooms prior to November 27, 2022. (UMF, No. 18). Plaintiff took photos of the stairs in the room where she allegedly fell in Room 4227 at the Premises on November 27, 2022; said photos are the only evidence Plaintiff has which she believes "shows or tends to show that the carpet upon which [she] allege[s] to have fallen constituted a dangerous condition." (UMF, No. 19).

The undisputed material facts show that the stairs in Room 4227 were not a dangerous condition and, even if they arguably were, Defendants had no actual notice of any such condition within a sufficient enough time to correct any alleged defects. If Defendants had no actual notice of any such defects, and no such defects were present in Room 4227, then they could not have had constructive notice thereof. Plaintiff admitted facts in her discovery responses which show she has no evidence that Defendants breached any duty toward her with respect to the stairs on which she fell. Thus, Plaintiff cannot establish the "breach" element of the General Negligence and Premises Liability causes of action in the Complaint.

Moreover, Plaintiff cannot establish the General Negligence cause of action based upon a theory of negligent training or supervision. Defendants did not hire any employee

with respect to the work on the construction of Room 4227, or the stairs located therein, who was not competent to perform said work, or who otherwise exposed others to a risk of harm. (UMF, No. 14). Accordingly, said theory of liability against Defendants is untenable.

Causation:

Here, Plaintiff used her key card to enter the room and then recalled that the lights were off. (UMF No. 3). Plaintiff made no attempt to look for a light switch to turn on before she entered the room, and believed that the room was light enough for her to walk through. (UMF No. 4). When Plaintiff entered the room on November 27, 2022, she was carrying a suitcase which weighed approximately 50 pounds and a shoulder handbag. (UMF No. 5). Plaintiff failed to turn on the light switch when she entered Room 4227 at the Premises prior to her fall on November 27, 2022. (UMF, No. 17).

Here, Plaintiff caused her own injuries because the evidence shows she failed to turn on the lights in Room 4227 after entering it on the evening of November 27, 2022 before she proceeded into the room and fell down the stairs therein while carrying a handbag and heavy suitcase. As established above, Defendants did not breach any duties to Plaintiff. As such, Defendants could not have caused Plaintiff's injuries. Plaintiff simply cannot meet her burden of establishing a causal link between the alleged dangerous condition with respect to the stairs in Room 4227 of the Premises (which condition did not exist), and the creation of the alleged condition, purportedly by Defendants.

Accordingly, Defendants' alleged conduct was not a substantial factor in causing Plaintiff's claims injuries because there is no evidence that Defendants "created a force or series of forces which [were] in continuous and active operation up to the time of the harm." There is no evidence that any conduct by Defendants "actively and continuously operate[d] to bring about harm to another." Accordingly, there are no triable issues of fact regarding the causation element of Plaintiff's causes of action for General Negligence and Premises Liability.

Shift of Burden per CCP § 437c(p)(2):

Defendants have met their burden on this motion and the burden shifted to Plaintiff to establish a triable issue. The evidence Plaintiff submits in support of her opposition does not contest the undisputed material facts supporting the motion, including the facts that:

(1) Plaintiff made no attempt to look for a light switch to turn on before she entered the room, and believed that the room was light enough for her to walk through. (Defendants' UMF No. 4.)

(2) Prior plaintiff's fall incident on November 27, 2022, no one had reported any injuries in Room 4227, and defendants never had any notice of an allegedly dangerous condition in Room 4227 at the premises, prior to Plaintiff's fall incident on November 27, 2022; therefore, defendants had no opportunity or duty to correct a dangerous condition that did not exist. (UMF No. 13.)

(3) Plaintiff has no evidence that Defendants had any actual knowledge or notice of a dangerous condition in the area where she fell in Room 4227 at the premises, prior to November 27, 2022. (UMF No. 15).

(4) Plaintiff has no evidence that Defendants had an opportunity to correct any dangerous condition that purportedly caused plaintiff to fall in Room 4227 at the premises, prior to November 27, 2022, and that Defendants allegedly failed to correct said condition. (UMF, no. 16).

(5) Plaintiff failed to turn on the light switch when she entered Room 4227 at the premises prior to her fall on November 27, 2022. (UMF No. 17).

Plaintiff has failed to meet its burden as follows:

1. Opposing Declaration of "Expert" Brad P. Avrit, PE

As demonstrated in Defendants' separately-filed Objections to Mr. Avrit's declaration, Mr. Avrit opined throughout his declaration that the subject stairs created an unsafe condition on the date of Plaintiff's incident, and that Defendants knew the stairs presented an unsafe condition. Mr. Avrit's testimony consists of improper legal opinions and conclusions.

2. Plaintiff's opposing arguments fail as to duty.

First, Plaintiff argues that Defendants "breached their duty by contributing/creating a dangerous condition by, among other things, turning off a light that was supposed to be on in a room that they knew had stairs hidden by carpet." (Opposition, page 14, lines 17-19). However, this argument is belied by the fact that Plaintiff does not dispute that she "made no attempt to look for a light switch to turn on before she entered the room, and believed that the rooms was light enough for her to walk through" (UMF, No. 4). Plaintiff also does not dispute with any of the evidence referenced in her responsive separate statement that "[p]rior to Plaintiff's fall incident on November 27, 2022, no one had reported any injuries in Room 4227 at the Premises." (UMF, No. 7). Additionally, the evidence submitted in support of Plaintiff's Opposition to the Motion shows that she does not dispute that "prior Plaintiff's fall incident on November 27, 2022, no one had reported any injuries in Room 4227, and Defendants never had any notice of an allegedly dangerous condition in Room 4227 at the Premises, prior to Plaintiff's fall incident on November 27, 2022; therefore, Defendants had no opportunity or duty to correct a dangerous condition that did not exist." (UMF, No. 13). Plaintiff's evidence referenced in support of her separate statement served with her Opposition shows she "has no evidence that Defendants had any actual knowledge or notice of a dangerous condition in the area where she fell in Room 4227 at the Premises, prior to November 27, 2022," and that she does not dispute that "Defendants [did not have an] opportunity to correct any dangerous condition that purportedly caused Plaintiff to fall in Room 4227 at the Premises, prior to November 27, 2022, and that Defendants allegedly failed to correct said condition." (UMF, Nos. 15, 16). While "the pattern of the carpet and the layout of the room were known to Defendants" (Opposition, page 15, lines 7-9), Plaintiff submits no admissible evidence that Defendants knew the stairs were a dangerous condition and had sufficient notice to correct such condition.

3. Plaintiff's opposing arguments fail as to causation.

Although Plaintiff argues in the Opposition that Defendants caused Plaintiff's injuries, there is no evidence to support this proposition. The statement that "Plaintiff establishes a causal link between the dangerous condition and the injury" (Opposition, page 14, lines 27-28) falls short of satisfying Plaintiff's burden of establishing triable issues of material fact on the "causation" issue.

4. Plaintiff's additional facts do not create a triable issue.

Plaintiff sets forth 34 additional material facts, but they fail to create triable issues of material fact sufficient to defeat the Motion. Many of the additional facts are centered on explaining how the subject accident occurred and arguing, via their expert Mr. Avrit, that the stairs presented an unsafe condition. However, as referenced above, the Avrit declaration is full of inadmissible legal conclusions and improper expert opinion. Moreover, none of the additional facts show any triable issues of fact as to the "breach" or "causation" elements of the Negligence and Premises Liability causes of action.

Plaintiff's Evidentiary Objections #1-11 to the Declaration of Gregory Martin OVERRULED.

Defendant's Evidentiary Objections #1-4 to the Declaration of Brad P. Avrit SUSTAINED.

Plaintiff's request in the alternative to treat the Motion for Summary Judgment as a Motion for Judgment on the Pleadings is DENIED, as the court does not make a finding that the complaint is insufficient as a matter of law.

Court trial confirmed for September 11, 2026, pending submission of proposed order and proposed judgment.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2501209	HESARI VS BAMBOO INSURANCE COMPANY, AN UNKNOWN ENTITY, ET AL.	DEMURRER ON 2ND AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$35,000) OF SERAJ MESBAH HESARI BY SUTTON NATIONAL INSURANCE COMPANY, AN UNKNOWN ENTITY

Tentative Ruling:

No opposition filed.

Defendant Bamboo IDE8 Insurance Services, LLC (sued as Bamboo Insurance Company) Demurrer to the 3rd Cause of Action SUSTAINED, without leave to amend.

Defendant's request that the demurrer apply to Paragraph 49 of Plaintiff's Second Amended Complaint and any implied covenant/bad faith claim, that is OVERRULED, as a demurrer is the improper method for striking of a paragraph/portion of a complaint.